
[Draft] Fw: Draft exemption terms including minimum fleet calculation

From

Draft saved Wed 2026-06-03 15:15

Giles Dennison | National Bus Compliance Co-ordinator

Driver and Vehicle Standards Agency | Enforcement Office, The Hastings Centre, The Ridge,
Hastings, East Sussex TN34 2SA

Mobile: 07710 834094 | DVSA National Number: 0300 1239000

 DVSA 3298 DIGI AW

Keeping Britain moving **safely** and **sustainably**

Find out more about government services at www.gov.uk/dvsa

Subject: FW: Draft exemption terms including minimum fleet calculation

Hi Gareth and Giles,

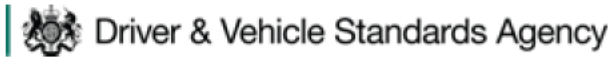
Please see below from Robert following yesterday's meeting.

Any issues let me know.

Regards

Spencer

Spencer Miller | Enforcement Policy Manager
Driver and Vehicle Standards Agency | DVSA Portacabin,
Freight Services Centre, Eastern Docks, Dover, CT16 1JA
07971924150



Find out more about government services at www.gov.uk/dvsa

[Redacted content]

Subject: Draft exemption terms including minimum fleet calculation

OFFICIAL

Hello all,

It was good to speak yesterday morning.

I copy below the draft exemption certificate as it currently stands (not yet fully legally cleared), including the exemption terms, and a description, at annex A, of the calculation for determining the minimum fleet proportion, as well as the information I promised in the meeting.

Promised information

For clarity, the proportion that applies to an exempt operator, and which should be listed alongside details of the vehicles granted Special Authorisations should be calculated as follows:

Data gathered from applicants:

InScopeFleet: The total number of coaches used by the operator on 1st May to provide home-to-school and rail replacement services combined.

InScopeCompliantCoaches: The total number of fully PSVAR compliant coaches used by the operator on 1st May to provide home to school and rail replacement services combined.

AllCoaches: The total number of coaches used by the operator on 1st May to provide any service (including HTS, RR, private hire, touring, etc).

Calculation:

1. All compliant vehicles on in scope services:
$$\text{InScopeCompliantCoaches} / \text{AllCoaches} \times 100.$$
2. MTE minimum requirements:
InScopeCompliantCoaches used to look up minimum MTE fleet proportion, calculated as a number of compliant coaches = "MinimumCompliantCoaches".
$$(\text{MinimumCompliantCoaches} / \text{AllCoaches}) \times 100.$$
3. Choose the higher percentage (1) or (2).

We also discussed what would happen if an operator's "InScopeCompliantCoaches" as above were lower than the "MinimumCompliantCoaches", indicating that on the 1st May 2026 they were not compliant with Medium Term Exemptions (if they had been granted an MTE). In such circumstances, the operator should be granted an exemption but instructed that it is not valid until they achieve the minimum percentage ((2) above), and cannot therefore be used to provide home-to-school services using non-compliant vehicles until then.

Draft exemption text

Equality Act 2010

Order of the Secretary of State under Section 178.

Operator	O Licence	Band	Service	Reference

The Secretary of State in exercise of the powers conferred by Section 178 of the Equality Act 2010, hereby authorises the use on roads of the regulated public service vehicles described in this Order notwithstanding that the vehicles do not comply with the requirements of Schedules 1 and 3 to the Public Service Vehicles Accessibility Regulations 2000, as amended, and subject to the terms and conditions set out in this Special Authorisation.

This Special Authorisation is valid only when the terms and conditions included in this certificate are met.

This Special Authorisation remains the property of the Secretary of State and may be withdrawn at any time at the discretion of the Secretary of State.

Signed by the authority of the Secretary of State:

30/07/2025



Issue Date

Liz Wilson

Deputy Director

Accessibility, Coaches, Taxis and Community Transport
Division

Public Service Vehicles Accessibility Regulations 2000 Special Authorisation Terms and Conditions of Use

1. This Order exempts relevant vehicles from Schedules I and III of the Public Service Vehicles Accessibility Regulations 2000 (PSVAR) when they are providing relevant services, and is valid only when all of the conditions specified here are complied with.
2. A separate Special Authorisation is hereby ordered for each of the Relevant Vehicles identified.
3. A "relevant vehicle" is a vehicle listed in Schedule B to this Order, and to which the Order applies.
4. A "relevant service" is a "closed door home-to-school service", defined as a service to provide home-to-school transport for school or Further Education pupils, and which can be used only by:
 1. a person receiving primary, secondary or further education or training at an educational establishment served by the service;
 2. a person supervising or escorting any such person while they are using such transport; or
 3. a person involved with the provision of education or training at that establishment.
5. A copy of the front page of this Order must be carried aboard any relevant vehicle when it is providing a relevant service, and must be shown to a Police Officer, or a person acting on behalf of the Driver and Vehicle Standards Agency (DVSA) or Traffic Commissioner, upon request.
6. The operator must not provide any service within scope of PSVAR using a Relevant Vehicle unless the service is a Relevant Service.
7. The Order will remain valid until its expiry date unless:
 1. The Secretary of State withdraws the Order, which they may do at their sole discretion; or
 2. The operator of a relevant vehicle fails to comply with any one of the validity conditions.
8. The Validity Conditions are:
 1. **Maintaining minimum fleet compliance:**

The operator must maintain a minimum proportion of PSVAR compliant coaches within their overall coach fleet. The applicable minimum proportion will be calculated in accordance with

Schedule A to this Order, and will be fixed for each operator for the validity of Special Authorisations applied to their coaches.

2. Any relevant vehicles which are used on relevant services but which are not PSVAR compliant, must in any case be "Partially Compliant", meaning they comply with the terms of Schedule 3 (2) – (5) of PSVAR, except for the requirements specified at Schedule A of this Order.

3. Providing fleet data to the Secretary of State:

The Operator provides a full, accurate and timely response to any request from the Department for Transport or the Driver and Vehicle Standards Agency for data concerning their coach fleet. To comply with this condition an Operator must respond to a request for such data within the timeframe requested, providing complete information which they reasonably believe to be correct.

4. New vehicle PSVAR enablement requirement:

Any service operated by the Operator must be operated using a "PSVAR enabled" vehicle where the vehicle operating that service is a coach designed to carry more than twenty two passengers and first registered on or after 1st February 2027, or pre registered on or after 1st August 2026 but not delivered to its first owner until or after 1st February 2027, except where such service is:

1. A service listed at Regulation 4 (1) (a) to (e)(e) of the Public Service Vehicles Accessibility Regulations 2000;
 2. A service using vehicles equipped permanently to provide specialist touring transport for a specified category of passenger, such as for touring musicians or elite sportspeople, including a non-standard seating layout, permanent reduction in normal seated capacity of at least 20%, and permanent provision of kitchen facilities including at least an oven;
 3. A vehicle first used before 1st February 2027 by the Ministry of Defence and not previously subject to registration requirements ; or
 4. A service procured from the operator by and for the sole use of an individual person or organisation for a continuous period of one month or more.
5. A "PSVAR Enabled" coach must comply with the requirements of Schedules I and III to the Public Service Vehicles Accessibility Regulations 2000 except for the requirements at Schedule I (5) for the vehicle to be equipped with a Boarding Lift, and Schedule III (7). Vehicles which are not equipped with a boarding ramp or which do not carry a portable ramp must however be constructed to a specification which would enable a Boarding Lift compliant with the specification at Schedule I (5) to be installed readily and without significant structural modification of the vehicle. Vehicles must also be constructed to a specification which would enable route and destination displays compliant with Schedule III (7) to be mounted readily and without requiring significant structural modification of the vehicle.

6. Fulfilment of requests for PSVAR compliant vehicles:

Upon receipt of a valid request the Operator will arrange for an available coach compliant with PSVAR to be provided. A valid request is:

1. A request made by a commissioner of home to school services, such as a local authority, school or group of parents, or where the Relevant Service is provided of the operator's own volition, by or on behalf of a prospective passenger;
2. A request for a coach, designed to carry over twenty two passengers,, which complies with the Public Service Vehicles Accessibility Regulations 2000, and which has or is being procured to provide a Relevant Service; and
3. A request made in order to transport a specific person listed at Condition 4 (a) to (c) above, who could not use that vehicle if it did not comply with the Public Service Vehicles Accessibility Regulations 2000, or who could not do so safely or in reasonable comfort.

7. A coach is considered to be available if it is owned or leased by the operator and it has not already been procured to provide a Relevant Service.
8. Operators must not charge or propose to charge more to provide a PSVAR compliant vehicle than they would to provide a non-compliant vehicle.
9. A valid request for a PSVAR compliant vehicle is fulfilled by a date two calendar months or more following the request being made.
9. The operator obtains from the commissioner of Relevant Services confirmation that alternative accessible services will be provided for passengers who cannot use a Relevant Service because it is provided using a Relevant Vehicle, and where they operate a Relevant Service of their own volition, they make arrangements for the provision of such alternative accessible services themselves.
10. This Order supersedes any Orders previously issued in relation to Relevant Vehicles.
11. The failure by the operator of a Relevant Vehicle to comply with these terms will render any Special Authorisation applicable to the vehicles they operate invalid, and leave the operator subject to enforcement action.

Schedule A: Calculation of Minimum fleet proportion

1. The Minimum fleet proportion will be calculated as the higher of:
 1. The combined total of PSVAR compliant coaches operated on home to school and rail replacement services, as a proportion of the total coach fleet; or
 2. The combined total of PSVAR compliant coaches which the operator was, or would have been, required to operate on home to school and rail replacement services by the terms of the original Medium Term Exemption scheme, as a proportion of the total coach fleet.
2. The combined home to school and rail replacement coach fleet excludes any vehicles which are not coaches, or which are not subject to PSVAR.
3. The terms of the original Medium Term Exemption scheme required operators to maintain a minimum number or proportion of PSVAR compliant coaches in their combined home to school and rail replacement coach fleet, depending upon the total number of such coaches operated. On 1st May 2026 the requirements which applied are set out in the following table:

Coaches in combined home-to-school and rail replacement fleet on 1st May 2026	Number of coaches or proportion of home-to-school and rail replacement combined fleet required to be PSVAR compliant on 1st May 2026
1 – 5 coaches.	1 PSVAR compliant coach.

6 – 9 coaches	2 PSVAR compliant coaches.
10 – 29 coaches	25% of HTS/RR coaches are PSVAR compliant.
30 or more coaches.	35% of HTS/RR coaches are PSVAR compliant.

Explanatory Notes:

1. Fleet – refers to the total number of in scope vehicles, i.e., used for either HTS or RR services or both. Vehicles not used for either HTS or RR services should not be counted. HTS services with no paying customers are not in scope of PSVAR. An in scope vehicle that is temporarily out of service is still considered to be part of the fleet, subject to the judgment of DVSA during any inspection.

2. Compliant – refers to a vehicle that complies with all paragraphs of Schedules 1 and 3 of PSVAR. Schedule 1 concerns facilities for wheelchair users, and Schedule 3 concerns other accessibility features.

3. Partially compliant – refers to a vehicle that is not fully compliant but as a minimum complies with PSVAR Schedule 3, paragraphs 2 (Floors and gangways), 3 (Seats), 4 (Steps, excluding sub paragraphs 1d, 1e, 1f, and 5) and 5 (Handrails).

4. Rounding – when determining the number of vehicles in a fleet that are required to comply based on a percentage calculation, numbers must always be rounded up, even when the percentage is a decimal point of less than 0.5, e.g. a percentage calculation equating to 1.3 vehicles would mean 2 vehicles must comply.

*Excludes compliance with Schedule 3, paragraph 4 (steps), sub paragraphs (1d, 1e, 1f, & 5).

Calculation examples

Example 1:

- An operator operated five coaches on home-to-school or rail replacement services on the 1st May, meaning that they were required to have at least one PSVAR compliant coach.
- The operator exceeded the requirement, and operated two compliant coaches on home-to-school and rail replacement services.
- Overall, they had ten coaches in their fleet on the 1st May 2026.
- Their minimum fleet proportion is therefore 2 divided by 10, multiplied by 100, making 20%.

Example 2:

- An operator operated 20 coaches on home to school or rail replacement services on the 1st May, meaning that they were required to have at least 5 PSVAR compliant coaches (25% of the combined home to school and rail replacement fleet).
- The operator did not meet the requirement, and had only four compliant coaches, so the requirement of 5 coaches applies.
- Overall, they had forty coaches in their fleet on the 1st May 2026.
- Their minimum fleet proportion is therefore 5 divided by 40, multiplied by 100, making 13%.

Schedule B: List of Relevant Vehicles

This Order grants Special Authorisations for the following vehicles:

[illegible]

OFFICIAL